

Joyfully Present Life Coaching L.L.C.

COACHING AGREEMENT

This Coaching Agreement (the "Agreement") is entered into by and between **Joyfully Present Life Coaching L.L.C.** ("Coach") and _____ ("Client"). Coach and Client may each be referred to individually as a "Party" and collectively as the "Parties."

1. SERVICES AND CLIENT ELIGIBILITY

1.1 Eligibility. Client must be at least eighteen (18) years of age to enter into this Agreement and receive coaching services from Coach. By signing this Agreement, Client represents and warrants that Client is eighteen (18) years of age or older and has the legal capacity to enter into this Agreement. Coach does not provide coaching services to individuals under eighteen (18) years of age.

1.2 Coaching Services. Coach agrees to provide life coaching and related coaching services to Client in accordance with the terms and conditions of this Agreement. The specific coaching program or package selected by Client, including the applicable services, number and duration of sessions, session format, fees, payment terms, and any included support or other deliverables, will be outlined in the applicable Invoice provided to Client.

1.3 Incorporation of Invoice. The applicable Invoice is incorporated into and made a part of this Agreement by reference solely with respect to the specific services, package, fees, payment terms, and other transaction-specific details stated therein. Client's payment of the applicable Invoice constitutes acceptance of the services and transaction-specific terms identified in the Invoice, subject to the terms and conditions of this Agreement.

1.4 Order of Precedence. In the event of any conflict, inconsistency, or ambiguity between this Agreement and an applicable Invoice, the terms of this Agreement shall control unless the Agreement expressly provides otherwise. The Invoice shall not modify, waive, or supersede any provision of this Agreement unless such modification or waiver is expressly set forth in a written amendment to this Agreement signed or electronically accepted by both Coach and Client.

1.5 Scope of Coaching. Coaching is a collaborative, client-directed process intended to support personal development, self-awareness, goal setting, behavior change, stress management, mindfulness, positive mindset development, and related personal or professional objectives.

Coaching is not therapy, psychotherapy, psychological counseling, medical care, diagnosis, treatment, or other licensed healthcare services. Coach does not diagnose, treat, or provide medical or mental health treatment for any condition.

1.6 Professional Services Limitation. Coach does not provide medical, psychological, psychiatric, therapeutic, legal, financial, tax, or other licensed professional services. Any

information, exercises, techniques, or educational materials provided by Coach are intended for general educational and personal-development purposes and are not a substitute for advice or treatment from an appropriately licensed professional.

2. FEES AND PAYMENT

2.1 Fees. Client agrees to pay Coach the fees for the Services selected by Client, as specified in the applicable Invoice. The Invoice will identify the applicable program or package, total fees, payment method, billing schedule, and other transaction-specific payment terms.

2.2 Payment Due. Unless otherwise expressly agreed to in writing by Coach, all fees are due and payable in full prior to the commencement of the applicable coaching session or program. Client is responsible for ensuring that all required payments are made in accordance with the payment schedule stated in the applicable Invoice.

2.3 Nonpayment. Coach may postpone, suspend, or decline to provide Services for which payment is due but has not been received, subject to Client's rights under applicable law.

2.4 Refunds. Except as otherwise expressly provided in this Agreement or required by applicable law, fees paid for Services are non-refundable. In extenuating circumstances, Coach may, in Coach's discretion, provide a refund or credit for sessions that have not yet occurred. Any such refund, credit, or adjustment must be confirmed in writing.

Nothing in this Section is intended to waive or limit any refund rights that Client may have under applicable California or federal law.

2.5 Invoice Terms. The applicable Invoice is incorporated into this Agreement solely with respect to the transaction-specific details stated therein. In the event of a conflict or inconsistency between the Invoice and this Agreement, this Agreement controls.

3. CANCELLATION AND RESCHEDULING

3.1 Client Cancellation or Rescheduling. Client must provide Coach with at least twenty-four (24) hours' advance notice to cancel or reschedule a scheduled coaching session. When Client provides at least twenty-four (24) hours' notice, the session may be rescheduled to a mutually agreed-upon date and time, subject to Coach's availability.

3.2 Late Cancellation and No-Show. Cancellations or requests to reschedule made less than twenty-four (24) hours before the scheduled session, as well as missed sessions or no-shows, may, at Coach's discretion, be considered a completed session and the session fee may be forfeited. This provision is subject to applicable law and any exception Coach may make in writing.

3.3 Coach Cancellation or Rescheduling. If Coach must cancel or reschedule a scheduled session, Coach will provide Client with reasonable notice when practicable and will offer Client an alternative date and time at no additional cost.

3.4 Client Responsibility. Client is responsible for attending scheduled coaching sessions at the agreed-upon date and time and for providing timely notice of any requested cancellation or rescheduling.

3.5 Unforeseen Technical or Other Circumstances. If a coaching session is interrupted, shortened, or unable to proceed due to circumstances beyond the reasonable control of Coach or Client, including internet or Wi-Fi outages, significant technical difficulties, power outages, or failures of video-conferencing or other technology, the portion of the session that could not be completed will not be considered forfeited. The remaining portion will be rescheduled at no additional cost, subject to Coach's availability.

3.6 Session Expiration. Unless otherwise expressly agreed to in writing by Coach, all coaching sessions purchased as part of a package or program must be used within six (6) months of the original purchase date. Any unused sessions remaining after the six-month period will expire and will not be eligible for refund, credit, transfer, or rescheduling, except at Coach's discretion or as otherwise required by applicable law.

Coach may extend the expiration period when reasonably necessary due to Coach's extended unavailability or other circumstances determined by Coach.

3.7 Non-Transferability. All coaching sessions are personal to Client and are non-transferable. Client may not sell, assign, transfer, gift, or permit another individual to use any purchased or unused coaching sessions without Coach's prior written consent.

4. CONFIDENTIALITY AND COACHING MATERIALS

4.1 Confidentiality. Coach will treat information shared by Client during coaching sessions as confidential and will not knowingly disclose Client's personal information or the substance of Client's coaching sessions to third parties without Client's consent, except as provided in this Agreement or as required or permitted by applicable law.

4.2 No Professional or Legal Privilege. Client understands that life coaching communications are not communications with a licensed psychotherapist, psychologist, physician, attorney, or other professional subject to a legally recognized professional privilege. Accordingly, communications between Coach and Client may not be legally privileged.

4.3 Exceptions to Confidentiality. Coach may disclose information when reasonably necessary to comply with applicable law, court order, subpoena, or other legal process, or where disclosure is reasonably necessary to address an imminent risk of serious harm to Client or another person, to the extent permitted or required by applicable law.

4.4 Group Coaching Confidentiality. Client understands that confidentiality cannot be guaranteed in group coaching. Coach will instruct participants to respect the privacy of others, but Coach cannot control the actions of other participants.

Client agrees not to disclose another participant's personal information, statements, experiences, or identifying information outside the group without that participant's express consent.

4.5 No Recording of Sessions. Coaching sessions may not be audio-recorded, video-recorded, photographed, screen-recorded, or otherwise recorded by either Party without the prior express written consent of both Coach and Client.

4.6 Coach's Materials and Intellectual Property. All materials created, developed, provided, presented, or made available by Coach in connection with the Services remain the property of Coach or Coach's applicable licensors. Such materials may include presentations, worksheets, exercises, handouts, documents, guides, templates, written content, coaching tools, educational content, and other materials ("Coaching Materials").

4.7 Electronic and Digital Materials. Coaching Materials may be delivered or maintained through email, text messaging, video-conferencing platforms, client portals, cloud storage, shared documents, or other technology.

Client understands that electronic communications and digital platforms carry inherent security and privacy risks and that Coach cannot guarantee the security of information transmitted through third-party technology platforms.

4.8 AI-Assisted and Technology-Generated Materials. Coach may use artificial intelligence, automated transcription, automated note-taking, or other technology in connection with administrative, educational, or coaching-related activities. To the extent such technology is used, Coach will take reasonable steps consistent with applicable law and the practices of the applicable technology provider to protect Client information.

AI-generated or technology-assisted materials created or provided by Coach remain subject to the protections and restrictions applicable to Coaching Materials under this Agreement.

4.9 Restrictions on Use and Reproduction. Client is granted a limited, non-exclusive, non-transferable right to use Coaching Materials solely for Client's personal development and reference.

Client may not, without Coach's prior written consent, copy, reproduce, record, photograph, screenshot, scan, modify, adapt, publish, distribute, forward, transmit, upload, post online, sell, sublicense, share, or otherwise make Coaching Materials available to another person or third party.

4.10 No Commercial or Instructional Use. Client may not use Coaching Materials for commercial, educational, instructional, coaching, training, consulting, presentation, publication, or other professional purposes without Coach's prior written consent.

4.11 Client Information. Nothing in this Agreement transfers ownership of Client's personal information, materials, documents, or content provided by Client to Coach.

4.12 Continuing Obligations. The confidentiality obligations and restrictions concerning Coaching Materials survive termination or expiration of this Agreement.

5. COACHING SCOPE AND CLIENT RESPONSIBILITY

5.1 Nature and Purpose of Coaching. Client acknowledges that Coach is not a licensed psychologist, psychiatrist, therapist, counselor, social worker, physician, or other licensed healthcare professional.

The Services are intended to support personal development, goal setting, self-awareness, behavior change, stress management, mindfulness, and self-development. The Services are not intended to diagnose, treat, prevent, or cure any mental health condition, illness, or medical condition.

5.2 Not a Substitute for Mental Health Treatment. Coaching is not a substitute for psychotherapy, counseling, psychiatric care, medical treatment, or other licensed healthcare services.

If Client is experiencing significant emotional distress, symptoms of a mental health condition, or a psychological or medical crisis, Client should seek assistance from an appropriately qualified healthcare or mental health professional. Coach may recommend that Client seek such professional assistance when appropriate.

5.3 No Emergency Services. Coach does not provide crisis intervention, emergency mental health services, suicide prevention services, medical emergency services, or emergency response services. Client should not use coaching as a substitute for emergency or crisis care.

5.4 No Professional Advice. Coaching is not a substitute for legal, medical, financial, tax, business, or other professional advice. Client agrees to seek independent professional advice when appropriate.

5.5 No Guarantee of Results. Coach makes no representations, warranties, or guarantees regarding any specific results or outcomes from the Services. Individual results vary based on numerous factors, including Client's participation, effort, circumstances, decisions, and implementation of strategies.

5.6 Testimonials and Examples. Testimonials, reviews, statements, case examples, or descriptions of results represent the individual experiences of the persons providing them and are not guarantees that Client will achieve the same or similar results.

5.7 Client Responsibility. Client retains sole responsibility and authority for Client's decisions, actions, choices, and implementation of any strategies, exercises, recommendations, or information discussed during coaching.

Coach provides education, perspectives, tools, and suggestions. Client independently determines whether, when, and how to implement them and is responsible for seeking professional advice when appropriate.

6. LIMITATION OF LIABILITY

6.1 No Guarantee of Results. Coach provides the Services in good faith and with reasonable care consistent with the nature of coaching services. Coach does not guarantee any particular result or outcome.

6.2 Limitation of Liability. To the maximum extent permitted by applicable law, Coach's total aggregate liability for claims arising out of or relating to this Agreement or the Services shall not exceed the total amount of fees actually paid by Client to Coach under this Agreement.

This limitation does not apply to liability that cannot lawfully be limited under applicable California or federal law.

6.3 Exclusion of Certain Damages. To the maximum extent permitted by applicable law, Coach shall not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, or for loss of income, business, profits, opportunities, anticipated savings, or other economic losses arising from Client's use of or reliance upon the Services.

This provision does not exclude or limit liability that cannot lawfully be excluded or limited.

6.4 Client Decisions and Actions. Client is responsible for Client's own decisions, actions, choices, and implementation of strategies or information discussed during coaching. Coach is not responsible for consequences arising from Client's decisions or failure to act, except to the extent liability cannot lawfully be excluded or limited.

6.5 No Waiver of Non-Waivable Rights. Nothing in this Agreement is intended to waive, release, or limit any right, remedy, claim, or liability that cannot lawfully be waived, released, or limited under California or federal law, including liability arising from fraud, willful misconduct, or other conduct for which limitation of liability is prohibited by law.

6.6 Legal Limitations. The limitations in this Section shall be interpreted only to the extent permitted by applicable law. If any limitation is determined to be unenforceable, it shall be enforced to the maximum extent permitted by law.

7. INDEMNIFICATION

7.1 Client Indemnification. To the maximum extent permitted by applicable law, Client agrees to indemnify and hold harmless Coach and Coach's owners, members, employees, contractors, agents, and representatives from third-party claims, damages, losses, liabilities, costs, and reasonable attorneys' fees arising directly from:

- (a) Client's material breach of this Agreement;
- (b) Client's negligent, reckless, or willful acts or omissions;
- (c) Client's unauthorized reproduction, distribution, sale, disclosure, or other unauthorized use of Coaching Materials;
- (d) Client's violation of applicable law; or
- (e) Client's unauthorized recording or disclosure of coaching sessions or another person's confidential information.

7.2 Exclusions. Client is not required to indemnify Coach for claims to the extent caused by Coach's negligence, gross negligence, willful misconduct, fraud, or other conduct for which indemnification cannot lawfully be required.

7.3 Third-Party Claims. The indemnification obligations in this Section apply to third-party claims and do not create an independent obligation for Client to indemnify Coach for Coach's own direct liability to Client.

7.4 Notice and Cooperation. Coach will provide reasonably prompt notice of a third-party claim for which indemnification is sought, to the extent permitted and practicable. Client will reasonably cooperate in the defense of such claim.

7.5 Survival. The obligations in this Section survive termination or expiration of this Agreement with respect to claims arising from conduct occurring during the term of the Agreement.

8. FORCE MAJEURE

8.1 Force Majeure Events. Neither Party shall be liable for delay, interruption, inability to perform, or failure to perform an obligation under this Agreement to the extent caused by circumstances beyond that Party's reasonable control, including natural disasters, earthquakes, fires, floods, severe weather, epidemics or pandemics, public health emergencies, governmental actions or restrictions, war, terrorism, civil unrest, labor disputes, power outages, internet or telecommunications failures, widespread technology or platform outages, or other events that could not reasonably have been anticipated or prevented.

8.2 Notice and Rescheduling. The affected Party shall provide reasonable notice when practicable. If a coaching session cannot reasonably be provided because of a Force Majeure Event, the Parties will make reasonable efforts to reschedule the affected session.

8.3 No Liability for Force Majeure. Neither Party shall be liable for damages, losses, delays, or expenses resulting from a Force Majeure Event, except for payment obligations that became due before the event or to the extent otherwise required by applicable law.

8.4 Extended Force Majeure. If a Force Majeure Event materially interferes with the Services for an extended period, either Party may terminate this Agreement by written notice. Any refund for prepaid Services that have not been provided will be handled in accordance with Section 2.4 and applicable law.

9. TERMINATION

9.1 Termination by Either Party. Either Party may terminate this Agreement at any time by providing seven (7) days' written notice.

9.2 Effect of Termination. Upon termination, Client remains responsible for Services provided and amounts properly due through the effective date of termination.

9.3 Prepaid Services. Any refund for prepaid Services not yet provided will be handled in accordance with Section 2.4 and applicable law.

9.4 Immediate Termination. Coach may terminate the coaching relationship immediately when reasonably necessary due to Client's threatening, abusive, harassing, unlawful, or materially disruptive conduct, or when Coach reasonably determines that coaching is no longer appropriate for Client's needs.

Any refund or credit for unused prepaid Services following termination under this Section will be determined in accordance with Section 2.4 and applicable law.

10. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to conflict-of-law principles.

Subject to the dispute-resolution requirements of Section 11, any court proceeding arising from this Agreement shall be brought in a court of competent jurisdiction in California, unless applicable law requires otherwise.

11. DISPUTE RESOLUTION

11.1 Good-Faith Discussion. The Parties agree to first attempt in good faith to resolve any dispute arising out of or relating to this Agreement.

11.2 Mediation. If the dispute cannot be resolved through good-faith discussion, the Parties agree to participate in mediation before a mutually agreed-upon neutral mediator before initiating a court action, except where immediate injunctive, emergency, or other relief is reasonably necessary or mediation is otherwise unavailable or prohibited by law.

11.3 Mediation Costs. Unless otherwise agreed in writing, the Parties shall share the mediator's fees and administrative costs equally. Each Party shall bear its own attorneys' fees and other costs incurred in connection with mediation.

11.4 Litigation and Attorneys' Fees. If a dispute proceeds to litigation following mediation, the prevailing Party may be entitled to recover reasonable attorneys' fees and costs to the extent permitted by applicable California law.

Nothing in this Section limits a court's authority to determine whether an award of attorneys' fees is legally permitted or appropriate.

11.5 No Waiver of Statutory Rights. Nothing in this Section is intended to waive any right or remedy that cannot lawfully be waived under California or federal law.

12. ENTIRE AGREEMENT

This Agreement, together with any applicable Invoice expressly incorporated into it, constitutes the entire agreement between the Parties regarding the Services and supersedes prior discussions, agreements, or understandings concerning the same subject matter.

Any amendment or modification must be in writing and signed or electronically accepted by both Parties.

13. SEVERABILITY

If any provision of this Agreement is determined to be invalid, unlawful, or unenforceable, that provision shall be modified or limited to the minimum extent necessary to make it enforceable, if permitted by law. If it cannot be made enforceable, it shall be severed, and the remaining provisions shall remain in full force and effect.

14. NOTICES AND CONTACT INFORMATION

Notices under this Agreement may be provided by email or other written communication to the contact information provided by the applicable Party.

Coach's contact email:

hello@joyfullypresent.life

Client's email:

Client agrees to promptly notify Coach of any change to Client's contact information.

15. TESTIMONIAL AND MEDIA RELEASE

15.1 Voluntary Testimonial. Client may, at Client's sole discretion, voluntarily provide Coach with a testimonial, review, statement, photograph, video, audio recording, or other feedback regarding Client's experience with the Services ("Testimonial Materials").

Providing a testimonial or other Testimonial Materials is completely voluntary and is not a condition of receiving or continuing to receive coaching services.

15.2 Authorization to Use Testimonial Materials. If Client voluntarily provides Testimonial Materials and separately authorizes their use below, Client grants Coach permission to use, reproduce, publish, display, distribute, and share the authorized Testimonial Materials for legitimate business, marketing, advertising, educational, promotional, website, social media, and other business-related purposes.

15.3 Name and Identifying Information. Client may choose whether Coach may identify Client by name. Authorization may include Client's first name, last name, photograph, professional title, business name, location, or other identifying information specifically authorized by Client.

15.4 Editing and Formatting. Client authorizes reasonable editorial or formatting changes for length, grammar, spelling, formatting, layout, or presentation, provided that such changes do not materially alter the substance or meaning of Client's testimonial.

15.5 No Guarantee or Compensation. Coach does not guarantee that Testimonial Materials will be used or published. Unless otherwise agreed in writing, Client will not receive compensation for providing or authorizing the use of Testimonial Materials.

15.6 Separate Consent. Client's consent to the use of Testimonial Materials is separate from Client's acceptance of this Coaching Agreement. Client may decline to provide a testimonial or decline authorization without affecting Client's eligibility for or access to coaching services.

15.7 Authorization Selection.

Client may authorize Coach to use the following:

- ☐ **Written Testimonial:** I authorize Coach to use my written testimonial or review.
 - ☐ **Name:** I authorize Coach to identify me by my name in connection with my testimonial.
 - ☐ **Photograph:** I authorize Coach to use my photograph in connection with my testimonial or other promotional materials.
 - ☐ **Video/Audio:** I authorize Coach to use my video and/or audio testimonial.
 - ☐ **Other Identifying Information:** I authorize Coach to use the following identifying information:
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- ☐ **Anonymous Use:** I authorize Coach to use my testimonial without identifying me by name.

15.8 Withdrawal of Future Authorization. Client may withdraw authorization for future use of Testimonial Materials by providing written notice to Coach. Withdrawal applies to future uses after Coach receives the written notice but does not require Coach to recall, remove, or destroy materials that were already published, distributed, printed, or otherwise lawfully used before withdrawal became effective.

15.9 No Ownership Transfer. Client retains ownership of Client's original statements, photographs, and other materials provided to Coach, subject to the authorization granted in this Section.

16. ELECTRONIC SIGNATURES AND COUNTERPARTS

16.1 Electronic Signatures. The Parties agree that electronic signatures, electronic acceptance, and electronically transmitted copies of this Agreement may be used and shall have the same effect as original signatures to the extent permitted by applicable law.

16.2 Counterparts. This Agreement may be executed in counterparts, including electronically, and each counterpart shall be considered an original. Together, the counterparts constitute one agreement.

17. ACKNOWLEDGMENT AND ACCEPTANCE

By signing below, Client acknowledges that Client:

1. Is at least eighteen (18) years old;
 2. Has read and understands this Agreement;
 3. Understands that coaching is not therapy, medical care, or mental health treatment;
 4. Understands that Coach does not guarantee any particular result;
 5. Understands that Client is responsible for Client's own decisions and actions;
 6. Has had an opportunity to ask questions about the Services and this Agreement;
 7. Agrees to the terms and conditions of this Agreement; and
 8. Understands that testimonial and media authorization under Section 15 is voluntary and separate from acceptance of this Agreement.
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COACH:
Joyfully Present Life Coaching L.L.C.

Coach Signature: _____

Date: _____

CLIENT NAME: _____

Client Signature: _____

Date: _____

Client Email: _____